

Q1: How did economic nationalism mirror the work of early nationalist leadership in India? (10 Marks, 150 Words)

Answer: Economic nationalism refers to a set of policies and beliefs that prioritize the economic interests of a nation, often with the aim of promoting domestic industries, protecting national resources, and achieving economic self-sufficiency.

Economic nationalism mirrored the work of early nationalist leadership in several ways:

- **Opposition to Colonial Economic Policies:** Early nationalist leaders like Dadabhai Naoroji and Gopal Krishna Gokhale opposed exploitative British economic policies.
 - Example: Dadabhai Naoroji, in his book "Poverty and Un-British Rule in India," gave "Drain of Wealth" theory.
- **Vision for Economic Progress:** Leaders like R.C. Dutt, Subramanian Iyer shared vision for economic progress, based on equity and justice, recognizing the connection between economic prosperity and India's overall growth and welfare.
 - Example: R.C. Dutt on his essay titled "The Economic Drain" emphasized the need for industrial development, and land reforms to uplift the Indian economy and address socio-economic disparities.
- **Swadeshi Movement:** Leaders like Lala Lajpat Rai, Bal Gangadhar Tilak promoted economic nationalism through the idea of boycotting foreign products and the use of indigenous products.
 - Example: Swadeshi Steam Navigation Company; Development of large-scale chemical and pharmaceutical industries etc set up during Swadeshi Movement.
- **Promotion of Cottage Industries:** Economic nationalism emphasized the development and preservation of traditional Indian industries such as indigenous craftsmanship and cottage industries.
 - Example: Swadeshi cotton and silk textile mills set up during the Swadeshi Movement.
- **Promotion of Indigenous Education and Entrepreneurship:** Establishing educational institutions that emphasized self-reliance and the development of Indian entrepreneurship.
 - Example: Rabindranath Tagore established Visva-Bharati University in Santiniketan and Madan Mohan Malaviya established the Banaras Hindu University (BHU) aimed to revive and promote traditional Indian education, promoting vocational learning and promoted the concept of earn while you learn.

Economic nationalism mirrored the work of early nationalist leadership in India by promoting self-sufficiency, opposing exploitative colonial policies, empowering rural communities, preserving indigenous industries, and envisioning economic progress. These efforts aimed to uplift India's economy and foster national pride, ultimately contributed to self-reliance.

Q2: Critically analyze the contribution of the Extremists in the Indian freedom struggle. (10 Marks, 150 Words)

Answer: Extremists leaders advocated for more radical methods and believed in aggressive nationalism, including the use of boycotts, strikes, and even violence to achieve India's independence from British rule such as Bal Gangadhar Tilak, Bipin Chandra Pal, and Lala Lajpat Rai.

Positive contribution by the Extremist:

- **Mobilized masses:** The extremists, through their passionate appeals and mobilization efforts, were able to awaken a strong sense of nationalism among the masses. They motivated people to actively participate in the struggle for independence.
- **Unconventional Means:** Organized protests, boycotts, and strikes that disrupted colonial administration and demonstrating the collective power of the Indian masses.
- **Growth of concept of nationalism:** Extremists fostered nationalism, portraying India as a mother in bondage and inspiring patriots to liberate her. They added a cultural dimension to the national movement.
- **Assertive measures:** They advocated for direct action, personal sacrifices, and resistance, rejecting the conciliatory approaches of the moderates. Their emphasis on assertiveness helped shape a more aggressive and proactive stance against colonial rule.
- **Glorified India's Past:** The extremists through their writings, speeches, and organizational efforts, awakened a sense of pride in Indian heritage, culture, and history.

Though the extremist contributed positively to national movement but there were some limitations too:

- **Undermining of Moderates:** Extremist leaders undermined the moderates, accusing them of being weak nationalists. This led to a significant ideological divide within the Congress, culminating in the Surat Split of 1907.
- **Compromising Secularism:** Extremists' religious programs compromised the secular nature of the national movement, enabling critics to label Congress as a Hindu organization.
- **Ambivalent Stance on Social Reforms:** The reactionary elements among the extremist sometimes took frontstage. The Age of Consent Act created the impression as if extremists were against social reforms.
- **Struggle in Building a Mass Movement:** The extremists struggled to build a mass movement, except during the anti-partition movement when they achieved significant mobilization.
- **Ambivalent Stance on Violence:** Extremists had an ambivalent stance on violence. Aurobindo didn't reject violent methods, Tilak remained ambivalent, and the deportation of Rai and Singh led to the Ghadar movement. Extremists influenced the later violent revolutionary movement.

The Extremists' unwavering dedication, radical approach, and mass mobilization efforts played a crucial role in shaping the path towards independence and inspiring future generations in their fight for freedom.

Q3: Explain the concept of neutrality with reference to the office of the Speaker in Lok Sabha. Why is it important for the Speaker to maintain neutrality while presiding over the House? (15 Marks, 150 Words)

Answer: The concept of neutrality in the office of the Speaker in Lok Sabha refers to the Speaker's impartiality and fairness while presiding over the proceedings of the House. Neutrality means that the Speaker remains unbiased, treating all members of Parliament equally, irrespective of their political affiliations or ideologies.

Issues with Office of Speaker of Lok Sabha:

- **Lack of Independence:** The Speaker's affiliation with a political party may compromise their impartiality and ability to make unbiased decisions.
- **Party Influence:** Pressure from party leadership can influence the Speaker's decisions, undermining their independence and impartiality.
- **Disqualification Delays:** Delaying decisions on disqualification under anti-defection cases can create doubts about the Speaker's impartiality and allow political considerations to prevail.
- **Speaker's Political Aspirations:** A Speaker with future political ambitions may prioritize party interests over the fair functioning of the House.

Instances when decisions of the speaker have been criticized for being partial and biased:

- Delay the decision-making regarding disqualification of MLAs under anti-defection law in Manipur and Andhra Pradesh. 16 MLAs in the Arunachal Pradesh Assembly were disqualified by the Speaker, Nabam Rebia, in 2016 despite not officially leaving the party or defying its directives.
- Certifying bills such as Aadhaar Bill etc. as Money Bill, though it may not have met the strict criteria laid out in the Constitution,
- The farm Bills were passed by a voice vote despite opposition MPs asking for a division vote.
- Indian Speakers have held ministerial positions immediately before and after their term. Thus, it is not surprising that the Speakers in India have been blamed for partisanship.

Concept of neutrality is important to ensure:

- **Political Independence:** Neutrality allows the Speaker to detach themselves from their party affiliations and prevents the Speaker from being unduly influenced by political considerations.
- **Fair Decision-making:** Maintaining neutrality allows the Speaker to make unbiased rulings and decisions during debates and discussions. This ensures that the rights and interests of all members are protected.
- **Preserving the Integrity of the House:** When the Speaker maintains neutrality, it upholds the integrity of the House and fosters public trust in the legislative process.
- **Constructive Debates:** Neutrality creates a level playing field for all members, promoting open dialogue, respectful exchanges of ideas, and the exploration of various perspectives.
- **Upholding Democratic Principles:** By maintaining neutrality, the Speaker upholds democratic values such as fairness, equality, and the protection of minority rights, ensuring that the voices of all members are respected and represented.

India can adopt UK's convention that is once a speaker, always a speaker which ensures independence, non-partisanship to ensure fair and objective arbiter of parliamentary affairs.

Additional Information:

- **Kihoto Hollohan vs. Zachillhu and Others (1992):** This landmark judgment emphasized the Speaker's role as a tribunal in deciding disqualification cases under the Tenth Schedule of the Constitution. It highlighted the need for the Speaker's neutrality, fairness, and adherence to principles of natural justice.
- **Raja Ram Pal vs. Hon'ble Speaker, Lok Sabha, and Others (2007):** In this case, the Supreme Court reaffirmed the importance of the Speaker's impartiality and independence. It held that the Speaker's decisions, particularly regarding disqualification matters, are subject to judicial review to ensure adherence to constitutional principles.
- **Nabam Rabia case (2016):** In this case, the Supreme Court examined the issue of disqualification and upheld the principles of neutrality and fairness. The judgment reiterated the Speaker's duty to act impartially and to ensure a transparent and objective decision-making process.

Q4: Critically Examine the Supreme Court's judgement on 'National Judicial Appointment Commission Act, 2014' with reference to appointment of judges of higher judiciary in India. (15 Marks, 250 Words)

Answer: The 'National Judicial Appointment Commission (NJAC) Act, 2014' sought to replace the existing collegium system of judicial appointments with a commission comprising of judges and non-judicial members. However, the Supreme Court declared the NJAC Act unconstitutional in 2015, upholding the primacy of the collegium system.

Articles 124 and 217 of the Constitution dealt with the appointment of judges of the higher judiciary through collegium system. NJAC aimed at replacing the collegium.

Issues with collegium:

- **Lack of Transparency:** The collegium system lacks transparency as the decision-making process for judicial appointments is not made public, leading to opacity and the perception of favoritism.
- **Limited Accountability:** The Collegium is not accountable to any other authority. The lack of a written manual for functioning, the absence of selection criteria, the arbitrary reversal of decisions already taken, the selective publication of records of meetings are some of the evidence.
- **Lack of Merit-Based Selection:** The collegium system has faced criticism for not giving enough weight to merit-based selection, potentially compromising the quality and competence of judges appointed to the higher judiciary.
- **Absence of Diversity:** The system has been criticized for not adequately considering diversity in terms of gender, regional representation, and diverse legal backgrounds, leading to a lack of inclusivity in the judiciary.
- **Excessive Judicial Control:** The collegium system concentrates the power of judicial appointments in the hands of a few judges, leading to concerns about undue influence and a lack of democratic participation in the process.

Missed opportunity:

- **Judicial Reforms:** The judgment missed an opportunity to initiate meaningful judicial reforms, including enhancing the accountability, transparency, and efficiency of the appointment process, which could have strengthened the judiciary's credibility and public trust.
- **Lack of Accountability:** Striking down the NJAC Act reinforced the lack of accountability in the collegium system, as there was no alternative mechanism proposed to address the concerns regarding transparency and checks on judicial appointments.
- **Retention of Opacity:** The striking down of the NJAC Act maintained the existing opaque nature of the collegium system, contributing to the perception of favoritism and undermining the principles of transparency and meritocracy.
- **Undermining Democratic Principles:** The decision reinforced the concentration of power in the hands of a few judges, undermining democratic principles by excluding the participation of non-judicial members and denying a more inclusive and diverse appointment process.

While the Supreme Court's judgment upheld the collegium system, it also highlighted the need for reforms in the judicial appointment process with the objective of striking a balance between judicial independence, transparency, and accountability.

Q5: What are the key provisions of the Lucknow Pact of 1916? Highlight the significance of the Lucknow Pact of 1916. (15 Marks, 250 Words)

Answer: Before the Lucknow Pact of 1916, India experienced political fragmentation and communal tensions. The Indian National Congress and the All-India Muslim League emerged as influential political organizations, advocating for Indian interests and seeking to bridge the divide between Hindus and Muslims.

Key provisions of the Lucknow Pact of 1916 were:

- **Joint Electorates:** It called for joint electorates where Hindus and Muslims would vote together, promoting inclusivity and representation.
- **Reserved Seats:** The pact demanded reserved seats for Muslims in provincial legislative councils to ensure their fair political representation.
- **Weightage:** It proposed the concept of weightage, wherein seats would be adjusted to provide adequate representation for religious minorities.
- **Constitutional Reforms:** The pact sought reforms in the legislative and executive councils to increase Indian representation and participation in the governance process.
- **Common Demands:** The pact included common demands like civil liberties, the repeal of repressive laws, administrative reforms, and the abolition of the Arms Act and Press Act.

Significance of Lucknow Pact of 1916:

- **Hindu-Muslim Unity:** The pact fostered a crucial understanding and cooperation between the Indian National Congress and the All-India Muslim League. It marked a significant milestone in Hindu-Muslim unity in the fight against British colonial rule.
- **Political Representation:** The pact addressed the demand for fair representation of Muslims in the political arena. It secured reserved seats for Muslims in provincial legislative councils and advocated for weightage to ensure adequate political participation and representation.
- **Strengthening Indian Nationalism:** The Lucknow Pact emphasized the shared aspirations and goals of INC and Muslim league in their struggle for self-governance, transcending religious differences and fostering a broader sense of national identity.
- **Increased Political Consciousness:** The Lucknow Pact raised political consciousness among Indians, particularly Muslims, by highlighting their rights, demands, and aspirations. It helped mobilize the masses and encouraged them to actively participate in the freedom struggle.
- **Impact on Reforms:** The pact provided a framework for discussions and negotiations between Indian leaders and the British government, paving the way for future reforms that aimed to grant Indians more political power and participation in the governance of the country.

The Lucknow Pact of 1916, with its provisions for Hindu-Muslim unity, joint electorates, reserved seats, and political representation, holds immense significance. It strengthened nationalist movements, fostered collaboration, promoted inclusivity, and laid the foundation for future joint efforts, propelling India towards the fight against colonial rule.